SANCTUARY
ON SPRUCE CREEK

COMMUNITY NEWSLETTER

March 2018 ISSUE 3

A MESSAGE FROM OUR PRESIDENT

I trust you had a wonderful holiday season and hopefully your landscaping survived the two recent frosts (my crotons did not fair too well). But have no fear, spring is around the corner as this week's unusually warm weather predicts.

Thank you again for working hard to keep the Sanctuary looking as good as it does. As a board, we appreciate how much work our residents and committees do to keep things looking great – especially the Architectural Review Committee. And though it seems at times they can be a tough group to please, they work tirelessly trying to keep things consistent, predictable and acceptable. Not an easy job!

But what really helps is what most of us do every day. Keeping your yards mowed, the concrete pressure-washed and the property maintained. In the end, that's all we or your neighbors are looking for.

So help your neighbors a bit. Let's pick up trash where we see it. Please don't park across the sidewalks. It's not only illegal, it's discourteous to those around you. And help a neighbor when you can. We're all in this together.

Warren Klemm- HOA President

COMMUNITY MEETINGS

Board of Directors	Architectural Review
March 8th April 12th May 10th June 14th Meetings are held at 7PM at the Port Orange City Hall 2nd floor conference room. All residents are urged to attend.	Meetings are held on the FIRST Monday of the month (except for holidays) at 5:30PM in the Port Orange Library and are open to the community. Applications received during the month are reviewed at these meetings. If you plan to attend, please notify our property manager at 386-219-2010

HOA BOARD OF DIRECTORS

President	Warren Klemm
Vice President	John Bogdanoff
Secretary	Ann Colt

This newsletter is created for the information and entertainment of the residents of The Sanctuary on Spruce Creek. Comments, information, and opinions expressed are those of the individual writers and not necessarily shared by the Board of Directors. Official notices from the Board will be signed as such.

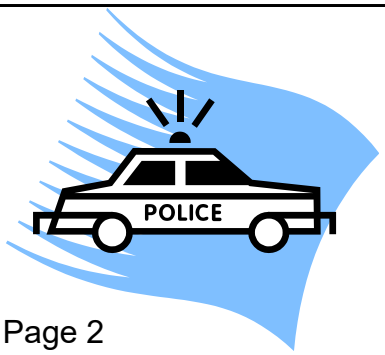
ARC ANNUAL REVIEW

Our Community is governed by Covenants and Restrictions (available on TLC-PG.com) which help to preserve and maintain property values.

The Annual Review of Lots, done by the ARC, is coming up again in late Spring, early Summer 2018.

The review is done to insure that basic maintenance items, i.e. lawn care, sidewalk and driveway maintenance, landscape beds, routine pruning of trees and shrubs and structure maintenance, roofs, fascia and soffits are being addressed.

The ARC thanks all of our neighbors in advance for their co-operation.



THE PORT ORANGE POLICE DEPARTMENT IS LOOKING FOR VOLUNTEERS.

IF YOU ARE INTERESTED IN HELPING, PLEASE CONTACT OUR NEIGHBOR

AL PETERSON AT 386-589-7337

Michael & Ekaterina Welch	1313 Crepe Myrtle Lane
Steven Florczak	1407 Florida Moss Lane
Michael & Kristen Santello	6102 Sanctuary Garden Blvd.
Mark & Gina Cornell	6015 Sanctuary Garden Blvd.

Spring Update from the Landscape Committee

This is such a great time of year as we say goodbye to the cold weather and watch our neighborhood come alive as our flowers and shrubs begin to bloom. In the upcoming weeks we will begin getting our neighborhood ready for spring with trimming our shrubs, planting new colorful annuals and power washing.

Over the past year we have made several improvements to our landscaping and will continue to do so this year. New landscaping will include planting several new Magnolia trees along Roscoe Turner and giving our front entrance a fresh new look that includes adding 12 new palms and several new flowers and shrubs.

As you think about getting ready for spring and start your own spring projects, we would like to offer you a source for some relevant information on gardening tips and clinics. Listed below are websites and meeting dates that may be helpful to you and answer questions you might have.

GARDENING IN CENTRAL FLORIDA - YOUR UNIVERSITY OF FLORIDA AND MASTER GARDENER CONNECTION

For information on all of your gardening, turf and tree trimming questions there is an excellent University of Florida source at http://solutionsforyourlife.ufl.edu.
The University of Florida Central Florida Gardening Calendar, a document within that site arranged by month, is at http://edis.ifas.ufl.edu/ep450.

A Volusia County Master Gardener is on duty Monday through Friday at the County Extension office in Deland to answer your gardening, turf and tree trimming questions: 386-257-6012

There is a Master Gardener clinic at the Port Orange Library every 3rd Tuesday at 2pm (unless otherwise advertised). They often have a monthly topic presentation at the beginning of the clinic, followed by a question and answer period. Bring them your gardening issues as well as samples of your diseased plants for diagnosis.

Happy Gardening!

Connie Pawela; Joyce Velba

TIPS TO AVOID COMMON MISTAKES ON FLORIDA HOA DISCLOSURES

Source: Blog of Henderson Franklin, Attorneys of Law

Non-compliance with Florida Statute §720.401 can be fatal to the closing of a purchase and sale contract. Given the current real estate climate, sellers of residential property cannot afford to lose a sale, or become involved in a lawsuit due to mistakes associated with the required homeowner's association disclosure ("Disclosure") specified in such statute. By understanding the law and being aware of the mistakes, a seller and his/her agent can increase the odds of closing a sale without an adverse surprise.

The Law

Florida Statute Section 720.401, requires owners of real property subject to a homeowner's association(s), to deliver to a potential purchaser the Disclosure prior to contract execution. The form of the Disclosure must be substantially in the same form as identified in the statute.

Non-Compliance

As a practical matter, the Disclosure is seldom signed before contract execution because the selling agent does not typically know of all the required assessment information to be included in the Disclosure. One way to avoid this problem is to have the seller complete the Disclosure at the time of the listing agreement and include same as an attachment in the property multiple listing service, for use by selling agents.

When the Disclosure is not signed before contract execution, the purchaser may terminate the contract (i) within 3 days after receipt of the Disclosure or (ii) prior to closing, whichever first occurs. From timing prospective, it is imperative that the seller deliver the Disclosure to the purchaser as soon as possible after contract execution to run the clock on the purchaser's rescission period.

Common Mistakes

1. Non-Delivery of Disclosure. In my experience, I have seen many seasoned listing agents fail to deliver to the purchaser the Disclosure. In some instances, the Disclosure was purposely not delivered to a buyer who coincidentally lived in the same community as the property under contract. The statute does not provide an exception for non-delivery in such case. *Knowledge of the law is key*.

2. Combining Multiple Communities On One Form. It is not uncommon to view a Disclosure which has combined assessment information for two (2) associations on one (1) Disclosure. Doing so can create a compliance issue, especially if the information is presented in a confusing fashion. The preferential practice is to utilize one (1) Disclosure form for each and every homeowner's association in the community.

3. Seller's Delivery of HOA Governing Documents. Many realtors are under the mistaken impression that the statute requires the seller to deliver to a purchaser copies of the association's articles, by-laws or the community's rules and regulations, financials or declaration of restrictive covenants. The seller is not required to deliver these documents under the statute. It is the purchaser's responsibility, unless the parties contractually agree otherwise.

Bottom Line

To prevent an unnecessary contract termination, deliver one (1) Disclosure for each homeowner's association a property is subject to and if a Disclosure is not provided before contract execution, accomplish delivery promptly thereafter.

All HOA matters, including emergencies, maintenance needs, and complaints, should be directed to our management office: Cheryl Weber, TLC Professional Group, 5889 S Williamson Blvd Suite 1301,Port Orange, FL 32128 386-219-2010

BEFORE making any changes to the exterior of your home, your plans MUST BE APPROVED by our architectural review committee. Applications are reviewed monthly at the ARC monthly meetings Revised forms can be downloaded from our management website: TLC-PG.com

The Sanctuary covenants prohibit the storage of garbage cans or any other trash containers outside of the home.

Also, parking over the sidewalk is not only a covenant violation, but is also a violation of City law.

If your mailbox needs to be replaced call: Stu Munson

at 322-7033 for information regarding supplies and costs.

CHECK OUT WHAT'S NEW….Did you know that you can go to our property manager website for information? Visit:

www.TLC-PG.com

INCLUDED IN THE SANCTUARY SECTION FIND:

Covenants and Restrictions

ARC review Forms

Approved BOD meeting minutes

Newsletters

And much more

GOT NEWS????

If your school, club, church or non-profit group has a special event or a need for volunteers, let our editor know.

We will run the information at no charge, space permitting in the quarterly newsletter.

Write to Nancy Graer at sscnews@outlook.com.